

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-08

FORMUKLEEN, INC.,

Complainants

v.

TOP SHIPPING SYSTEMS, CORP.,

Respondent.

**RESPONDENT'S MOTION FOR CLARIFICATION, PROTECTIVE RELIEF, AND
GUIDANCE REGARDING SCOPE OF DISCOVERY**

Respondent Top Shipping Systems Corp. ("TSS"), appearing pro se, respectfully moves for clarification, protective relief, and guidance concerning the scope of discovery under Requests for Production Nos. 2 and 3.

In response to the Presiding Officer's letter dated April 1, 2026, TSS does not seek to avoid its discovery obligations of the Court's prior orders. Rather, TSS seeks guidance regarding the scope of any remaining communications review required in this matter and whether Complainant's interpretation of those requests is proportional to the needs of the proceeding. Following the Presiding Officer's May 21, 2026, Order, TSS promptly contacted Complainant in an effort to streamline the remaining discovery issues and reduce the burden associated with the requested communications review. Complainant declined those efforts.

Since April 1, 2026, TSS has undertaken substantial efforts to comply with its discovery obligations. TSS has produced records relating to FormuKleen shipments, including shipment files, invoices, aging reports, payment records, cargo releases, delivery orders, warehouse records, operational documents, and communications. TSS has also conducted supplemental searches, identified responsive Bates ranges, reviewed challenged redactions, and supplemented its production concerning containers CHSU4047424 and BSIU8431017.

As of May 28, 2026, TSS has produced the materials specifically identified by Complainant in its recent correspondence concerning those two subject containers, including Bates identification, revised productions addressing challenged redactions, and additional review of third-party communications.

The remaining dispute concerns the scope of communications review relating to approximately fifty-four (54) historical shipments, which include the subject shipments identified in the Complaint. With respect to those shipments, TSS acted in limited capacities, including as a notify party, customs broker, drayage coordinator, warehouse provider, cargo release agent, and storage provider, and acted as a destination agent for approximately only seven (7) shipments. TSS did not act as the NVOCC responsible for the full scope of transportation services for any of these shipments. Importantly, for the vast majority of these historical shipments, the ocean transportation had already concluded before TSS became involved.

Such review has become very burdensome, requiring the manual collection and review of years of emails across multiple employee email accounts, attachments, operational correspondence, and communications involving numerous third parties. Given the passage of time, the volume of records involved, and TSS's limited role in these shipments, the burden of any further comprehensive communications review is substantial. Because TSS generally became involved only after ocean transportation had concluded, any communications in its possession are unlikely to concern the ocean transportation services that form the basis of Complainant's claims. TSS respectfully submits that the parties have reached an impasse regarding the appropriate scope of such review and seeks guidance from the Presiding Officer

TSS'S GOOD-FAITH EFFORTS TO NARROW THE DISPUTE

Following the Presiding Officer's May 21, 2026 Order directing the parties to make further efforts to resolve discovery issues before renewed motion practice, TSS contacted Complainant and proposed reasonable measures to narrow the dispute. Specifically, TSS proposed stipulations, a focused telephone conference regarding scope, and reasonable time to complete any remaining review.

Complainant declined those proposals and declined to stipulate any narrowing of the requested discovery. Correspondence reflecting those efforts is attached as Exhibit A. See Exhibit A. TSS therefore seeks guidance or relief from the Presiding Officer regarding the appropriate scope of any additional communications review and whether limitations, phased discovery, or other protective measures are appropriate to relieve the burden on Respondent. Respondent is also willing to provide samples to Your Honor or to Complainant to demonstrate that the documents are only related to correspondence after the ocean transportation was terminated.

WHEREFORE, Respondent Top Shipping Systems Corp. respectfully requests that the Presiding Officer:

- A. Clarify the scope of Requests for Production Nos. 2 and 3 in light of TSS's limited role as customs broker, drayage coordinator, and ancillary service provider, in circumstances where ocean transportation had already concluded prior to TSS's involvement;
- B. Allow TSS to provide sample communications search with respect to the approximately fifty-four historical shipments at issue;
- C. Grant such protective relief as the Presiding Officer deems appropriate to ensure discovery remains proportional to the needs of this proceeding; and
- D. Grant such further relief as the Presiding Officer deems just and proper.

Respectfully Submitted,

TOP SHIPPING SYSTEMS CORP

A handwritten signature in blue ink, appearing to read "Jack", is written over the company name.

Vice President, pro se

From: Ricky Villena
To: sara@fouroneone.io
Cc: [Rachel Villena](#)
Subject: Docket to 25-08 compliance with April 1st order Supplemental Production
Date: Thursday, May 28, 2026 11:38:56 PM
Attachments: [image001.png](#)
[image002.png](#)

Hello Ms Dandan,

TSS has completed a further good-faith review of the challenged redactions and is providing a supplemental production via the Dropbox link below.

The supplemental production includes:

- Documents previously identified by Complainant as containing disputed redactions, which TSS has reviewed and reproduced;
- Identification of the Bates ranges corresponding to communications and records concerning containers CHSU4047424 and BSIU8431017; and

TSS also conducted an additional targeted review for third-party communications concerning containers CHSU4047424 and BSIU8431017, including communications with carriers, terminals, warehouses, truckers, vendors, and other non-FormuKleen entities where FormuKleen was not a participant in the communication. Following that review, TSS did not locate any additional responsive communications beyond those already produced.

To the best of TSS's knowledge, after conducting reasonable searches, TSS believes it has produced all responsive materials within its possession, custody, or control concerning containers CHSU4047424 and BSIU8431017.

Dropbox link : <https://www.dropbox.com> [REDACTED]

Best Regards,

Ricky Villena

Vp

CHB / FTZ / CFS / Distr / AOG

12480 NW 25th St Ste 100

Miami, Florida 33182

Phone: [305.639.3401](tel:305.639.3401)

Fax: [305.677.8030](tel:305.677.8030)



www.tsscorp.us

From: Sara Dandan <sara@fouroneone.io>

Sent: Tuesday, May 26, 2026 12:55 PM

To: Ricky Villena <ricky.villena@tsscorp.us>

Cc: Rachel Villena <rachel.villena@tsscorp.us>

Subject: Re: Docket No. 25-08 | Compliance with April 1 Order and May 21 Order

Hello Ricky,

Respondent's characterization of its conduct as "good faith" is rejected.

If Respondent had complied in good faith, Complainant would not have had to file a Motion to Compel, and the Presiding Officer would not have granted that motion in part and ordered Respondent to produce documents responsive to RFP Nos. 4 and 7. Respondent's obligations

are not new, unclear, or dependent on further negotiation.

The April 1 Order controls. Respondent must comply with it. Your obligation to comply has not been vacated and there is no issue as to your obligations under the order. They remain. Complainant has already recently provided a clear written conferral identifying the remaining deficiencies to you personally, after months of conferral with your previous counsel(s), which you have already been aware of (while remaining non-compliant with your discovery obligations). Complainant will not participate in an endless back-and-forth, a call, or further attempts to reframe compliance as a negotiation over obligations already ordered by the Presiding Officer.

Respondent must produce the ordered documents, cure the redactions, and identify the responsive RX/Bates ranges by May 28, 2026. If Respondent fails to do so, Complainant will renew motion practice and provide the Presiding Officer with the full written record, including Respondent's continued attempts to substitute delay, document dumps, and generalized claims of "good faith" for compliance.

Regards,

Sara Dandan, FourOneOne LLC
Admitted to Practice Before the Federal Maritime Commission

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On Tue, May 26, 2026 at 11:23 AM Ricky Villena <ricky.villena@tsscorp.us> wrote:

Good Morning Ms. Dandan,

We are reaching out again. We are genuinely trying to comply and want to resolve this cooperatively as directed by the Presiding Officer.

We respectfully note that the deadlines you have set were imposed unilaterally without any input from TSS especially given the recent holiday weekend. This is prejudicial to TSS and does not give us sufficient time to meaningfully address your concerns in good faith.

As noted in our previous email, TSS will have the additional targeted search for the two

subject containers completed and will identify the specific RX/Bates ranges for all responsive materials and redactions by May 29, 2026.

With respect to all other shipments, we are not asking for a significant amount of time. We are simply asking for a reasonable amount of time to review years of communications in addition to everything that already has been sent to you. Producing that volume of material is a significant and inordinate undertaking, and we ask for your understanding on that.

We are also genuinely asking Complainant to reconsider entering into stipulations to reasonably narrow the scope of what needs to be produced. A brief conference call would allow both parties to confer and stipulate, agree on reasonable terms, and avoid unnecessary burden. We believe this would resolve the matter faster and more efficiently.

We simply want to move this forward in a practical and cooperative way to streamline this process in good faith.

Best Regards,



Ricky Villena

Vice President

TSS Corp | CHB • FTZ • CFS • Distribution

12480 NW 25th St, Suite 100, Miami, FL 33182

Cell: (786) 367-2006

Tel: (305) 639-3401 ext. 124

Fax: (305) 677-8030

✉ Email: Ricky.villena@tsscorp.us

www.tsscorp.us



MEMBER# ID: 116453

Please Note:

- Please review the invoice and CBP Form 7501 upon receipt. Notify us of any discrepancies within three (3) working days.
- Duties are due upon receipt.

Confidentiality Notice:

This email and any attachments are confidential and may be legally privileged. If you are not the intended recipient, please notify the sender immediately and delete this email. Unauthorized use or disclosure is prohibited.

From: Sara Dandan <sara@fouroneone.io>

Sent: Friday, May 22, 2026 6:22 PM

To: Ricky Villena <ricky.villena@tsscorp.us>

Cc: Rachel Villena <rachel.villena@tsscorp.us>

Subject: Re: Docket No. 25-08 | Compliance with April 1 Order and May 21 Order

Hello Ricky,

Respondent's email does not resolve the issue.

There is already an order compelling production. The April 1 Order *required* Respondent to produce documents responsive to RFP Nos. 4 and 7. Respondent's obligation is to comply with that Order. Respondent's obligation is not satisfied by saying it is willing to conduct another search, by proposing a meeting, by invoking the holiday weekend, by referencing staffing issues, or by stating what it "believes" it has already produced.

The issue is production.

If Respondent contends it has complied with the April 1 Order as to CHSU4047424 and BSIU8431017, identify the exact RX/Bates ranges where the responsive materials appear. If Respondent cannot identify the responsive RX/Bates ranges, then Respondent has not shown compliance.

Respondent was ordered to produce TSS communications with third parties outside FormuKleen. That means communications between TSS and any carrier, terminal, warehouse, trucker, vendor, payment recipient, NVOCC, freight forwarder, customs broker, yard, storage provider, or other non-FormuKleen person or entity concerning CHSU4047424 or BSIU8431017 where no FormuKleen representative was included as a sender, recipient, copied party, blind-copied party, or forwarded participant.

For clarity, "communications" means emails, email chains, forwarded emails, attachments to emails, text messages, WhatsApp messages, portal messages, internal messages, letters, notices, payment requests transmitted with messages, release instructions, delivery

instructions, storage or warehouse instructions, terminal or port communications, carrier communications, broker communications, vendor communications, and any other written or electronic exchange sent or received by TSS concerning CHSU4047424 or BSIU8431017.

Emails, documents, or attachments already sent to FormuKleen, copied to FormuKleen, forwarded to FormuKleen, or otherwise already available to FormuKleen do not satisfy Respondent's obligation to produce third-party communications that excluded FormuKleen.

Respondent also remains obligated to produce the RFP No. 7 records. TSS invoices to FormuKleen are not sufficient. Respondent must produce the underlying records showing the charges, payments, advances, credits, pass-through costs, storage charges, terminal charges, duties, drayage, warehousing charges, port-related charges, or other amounts actually paid, advanced, incurred, credited, or claimed by TSS for CHSU4047424 and BSIU8431017.

As to redactions, Respondent offered to produce disputed materials designated as Confidential or Attorneys' Eyes Only under the Protective Order. Complainant accepts that method of production. There is no remaining basis to withhold those materials.

Complainant does not agree that a meeting is necessary before Respondent complies with the April 1 Order. Complainant also does not agree that Respondent's proposed May 29 timeline, proposed additional search, proposed review process, staffing issue, holiday schedule, pro se status, or proposed discussion extends or excuses Respondent's obligation to comply.

The May 21 Order denied Complainant's Motion to Enforce without prejudice. It did not find that Respondent complied. It did not vacate the April 1 Order. It did not relieve Respondent of its obligation to produce responsive documents. It directed the parties to make further efforts to resolve the dispute. This email is Complainant's further effort.

Respondent must comply with the April 1 Order by May 28, 2026, or Complainant will renew motion practice on May 29, 2026. Respondent has been represented for months while these discovery issues were discussed between the parties, first by prior counsel and then by an entire law firm. Respondent also personally participated in proceedings while represented by counsel, and therefore cannot credibly claim that these issues, obligations, or the April 1 Order are new or unclear. Respondent has had ample opportunity to comply with its discovery obligations and the ALJ's April 1 Order while represented by counsel. If Respondent continues to substitute explanations, proposed searches, future reviews, document dumps, or generalized assertions of good faith for production and RX/Bates identification, Complainant will renew motion practice and provide the Presiding Officer with the full written record.

Regards,

Sara Dandan, FourOneOne LLC
Admitted to Practice Before the Federal Maritime Commission

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On Fri, May 22, 2026 at 4:44 PM Ricky Villena <ricky.villena@tsscorp.us> wrote:

Hello Ms. Dandan,

This is in response to your email yesterday. In accordance with the Presiding Officer's Order, we are reaching out to you in good faith to resolve the remaining discovery issues. To this end, we are interested in trying to understand your email regarding the scope of what you are seeking. Please note that we are not interested in prolonging this dispute, and we are committed to resolving these issues cooperatively. With that in mind, we respond as follows.

With respect to RFP Nos. 4 and 7, TSS believes it has produced all materials in its possession concerning containers CHSU4047424 and BSIU8431017. That said, we understand your concern regarding third-party search and TSS is willing to conduct an additional targeted search for third-party communications concerning the two subject containers - including communications with carriers, terminals, warehouses, truckers, vendors, and other non-FormuKleen entities where FormuKleen was not a party to the communication. This search will go beyond the two third-party email addresses previously identified and will identify the specific RX/Bates ranges for all responsive materials upon completion of that review. We do need a reasonable amount of time to complete this process, as it is not possible to conduct a thorough search in a single day, particularly with the upcoming holiday weekend. With respect to the two subject containers, TSS can have that completed by May 29, 2026.

On the redactions, TSS redacted information relating to and pertaining to other client's information. In the interest of resolving this without involving the Presiding Officer, TSS is willing to produce the disputed materials designated as "Confidential" or "Attorneys' Eyes Only" under the Protective Order. We are open to working out the details.

With respect to the additional shipments beyond the two subject containers, please note that we would need additional time beyond May 29, 2026 to complete a review of the approximately 55 shipments. However, we can agree to stipulations as permitted under FMC rules to streamline this process. We are seeking in good faith a less burdensome and

more practical path where we can provide either stipulations and/or other information that would satisfy your requests.

Rather than engaging in further motion practice over scope, in good faith TSS proposes that the parties schedule a meeting next week to discuss possible stipulations that reasonably narrow the production universe to what is actually relevant and less burdensome. TSS believes a focused conversation can resolve this quickly and practically. Please note that we are closed Monday for the holiday and will reopen Tuesday. Please let us know your availability beginning Tuesday and we will make ourselves available.

We look forward to your response.

Best Regards,



Ricky Villena

Vice President

TSS Corp | CHB • FTZ • CFS • Distribution

12480 NW 25th St, Suite 100, Miami, FL 33182

Cell: (786) 367-2006

Tel: (305) 639-3401 ext. 124

Fax: (305) 677-8030

✉ Email: Ricky.villena@tsscorp.us

www.tsscorp.us



MEMBER# ID: 116453

From: Sara Dandan <sara@fouroneone.io>

Sent: Thursday, May 21, 2026 12:20 PM

To: Ricky Villena <ricky.villena@tsscorp.us>

Subject: Docket No. 25-08 | Compliance with April 1 Order and May 21 Order

Ricky,

The Presiding Officer's May 21, 2026 Order instructs the parties to discuss appropriate searches and production issues before further motion practice. Complainant is doing so here.

Respondent should review Complainant's Motion to Compel, the April 1, 2026 Order granting the Motion to Compel in part, Complainant's Motion to Enforce, and the May 21, 2026 Order.

Complainant's Motion to Enforce was denied **without prejudice**. That means the Presiding Officer did not rule that Respondent complied. It means Complainant may renew the motion after making a clearer record of the parties' efforts to resolve the deficiencies. This email is part of that record.

Respondent was ordered to produce documents responsive to RFP Nos. 4 and 7. Respondent has not cured the deficiencies. Respondent's subsequent notices and productions do not cure the problem by re-producing documents already available to Complainant, emails on which FormuKleen was copied, invoices, delivery orders, warehouse receipts, or other backup materials that do not resolve the specific discovery deficiencies.

For clarity, "communications" means emails, email chains, forwarded emails, attachments to emails, text messages, WhatsApp messages, portal messages, internal messages, letters, notices, payment requests transmitted with messages, release instructions, delivery instructions, storage/warehouse instructions, terminal/port communications, carrier communications, broker communications, vendor communications, and any other written or electronic exchange sent or received by TSS concerning CHSU4047424 or BSIU8431017.

Respondent was ordered by the Judge to produce TSS communications with third parties outside FormuKleen. That means communications between TSS and any carrier, terminal, warehouse, trucker, vendor, payment recipient, NVOCC, freight forwarder, customs broker, yard, storage provider, or other non-FormuKleen person or entity concerning CHSU4047424 or BSIU8431017 where no FormuKleen representative was included as a sender, recipient, copied party, blind-copied party, or forwarded participant.

Emails, documents, or attachments already sent to FormuKleen, copied to FormuKleen, forwarded to FormuKleen, or otherwise already available to FormuKleen do not satisfy Respondent's obligation to produce third-party communications that excluded FormuKleen.

If Respondent contends it has already produced those communications, identify the exact RX/Bates ranges.

Complainant's position is straightforward: comply with the April 1 Order and cure the deficiencies raised in Complainant's Motion to Enforce.

That means Respondent must produce the missing third-party communications and RFP No. 7 records, address the challenged redactions, and identify where in the production Respondent contends the responsive materials appear. If Respondent maintains that it has already fully complied, Respondent must identify the specific RX/Bates ranges that correspond to the compelled materials.

Respondent has five business days from today to cure these deficiencies or provide a clear written position that it will not do so. This is a reasonable period because these discovery issues have been pending for months, Respondent has already been ordered to produce responsive materials, and the May 21 Order did not restart discovery or grant Respondent additional time to comply. It merely required the parties to make a clearer record of their efforts to resolve the dispute before further motion practice.

Regards,

Sara Dandan, FourOneOne LLC

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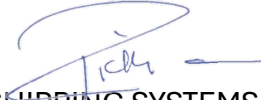
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CERTIFICATE OF SERVICE

I hereby certify that on May 29, 2026, I have served the foregoing to all parties of record in this proceeding via electronic mail.

By:



TOP SHIPPING SYSTEMS CORP

Ricky Villena

Vice President, pro se